MISHNEH TORAH — TISHREI

The Essence of Yom Kippur in Rambam's Thought: Work, Fasting & Tosefet

Hilchot Shevitat Asor 1

Sefer: Mishneh Torah (Rambam), **Sefer Zemanim — Hilchot Shevitat Asor** (three chapters only)

Perek: 1 — all seven halachot

Topic: Why the Rambam does not call these *Hilchot Yom Kippur*; the four mitzvot of the day; the three places Yom Kippur appears in the Torah; melachah on Yom Kippur and how it compares to Shabbat; the Or Sameach on **"the tenth"** versus **"Yom Kippur"**; *kinuv yerek*; affliction as eating and drinking; whether the other four *innuyim* are biblical; **tosefet** — and why, according to the Rambam, there is no such thing as *tosefet Shabbat*; and the women who ate until dark

Schedule note: Second week of the yamim tovim series. We have been learning **Hilchot Shabbat** for the last few years and are around **siman 320**; that is paused for a few weeks while we take the chagim **from the Rambam** rather than from the Shulchan Aruch as in previous years. Last week was **Hilchot Shofar**; tonight Yom Kippur; **next week Sukkot**. **Chapters 2 and 3 were not reached** — learn them over Yom Kippur (see Coming Up).

Introduction — Why It Is Not Called "Hilchot Yom Kippur"

Worth pausing on. In the **Talmud** the masechta is called **Yoma** — "the day." The Rambam writes in Hebrew, so he would not call it Yoma; you would therefore expect **Hilchot Yom Kippur**. He calls it neither. He calls it **הלכות שביתת עשור** — *the laws of resting on the tenth*.

Compare his other titles: **Hilchot Rosh Hashanah**, **Hilchot Sukkah V'Lulav**, **Hilchot Chametz U'Matzah** (why Pesach is titled that way is its own discussion).

Why not Yom Kippur? Because the **kaparah** — the atonement aspect of the day — he has already dealt with **exhaustively in Hilchot Teshuvah**, which we have learned together in full, in great length and depth, a few years ago. Here he is not dealing with the atonement of the day at all. He is dealing with **the day itself**: resting on the tenth and fasting on the tenth. Hence the title.

The Four Mitzvot (from the Rambam's own introduction to the section)

He tells us in the introduction — it is not in the text of the chapter — that there are **four mitzvot** in this section: **two positive and two negative**, which are really **two mitzvot**, each with a positive and a negative:

#	Mitzvah	Form
1	Rest from work	**Positive** — to rest
2	Do not do work	**Negative**
3	Afflict yourself	**Positive**
4	Do not fail to afflict yourself (i.e. do not eat or drink)	**Negative**

That is the whole agenda of the three chapters — and precisely why the section is titled *the laws of resting on the tenth*.

The Three Places Yom Kippur Appears in the Torah

Before opening the Rambam it is crucial to see the verses. Yom Kippur is discussed in **only three places** in the entire Torah — **twice in Vayikra, once in Bamidbar**:

Place	Parashah	When we read it
Vayikra 16	**Acharei Mot**	The morning of Yom Kippur
Vayikra 23	**Emor**	First day of Pesach; first two days of Sukkot
Bamidbar 29	**Pinchas** (the korbanot)	Maftir of Yom Kippur morning

1. Acharei Mot (Vayikra 16)

After the whole procedure of the goats:

והיתה לכם לחקת עולם: בחדש השביעי בעשור לחדש תענו את נפשתיכם וכל מלאכה לא תעשו

The seventh month (Tishrei), the tenth day — **afflict your souls** (positive #1) **and do not do any work** (negative).

כי ביום הזה יכפר עליכם לטהר אתכם מכל חטאתיכם לפני ה' תטהרו

The kaparah verse — **the Rambam will not discuss this here**; it belongs to Hilchot Teshuvah.

שבת שבתון היא לכם ועניתם את נפשתיכם

שבת שבתון is the **positive** mitzvah to rest from work; **ועניתם** a **second time** is *afflict yourselves*.

והיתה זאת לכם לחקת עולם לכפר על בני ישראל מכל חטאתם אחת בשנה — again kaparah, again Hilchot Teshuvah.

Tally from Acharei Mot: two positives to afflict, one positive to rest, one negative not to work.

2. Emor (Vayikra 23)

אך בעשור לחדש השביעי הזה יום הכפרים הוא — kaparah, not our subject.

ועניתם את נפשתיכם — afflict yourselves, a **third time** — **וכל מלאכה לא תעשו**.

כי כל הנפש אשר לא תענה בעצם היום הזה ונכרתה מעמיה — **here is the negative**: one who does *not* afflict himself receives **karet**. And likewise one who does work on this day receives karet.

שבת שבתון הוא לכם ועניתם את נפשתיכם — **a fourth** *afflict yourselves*, the positive to rest, and.

בתשעה לחדש בערב מערב עד ערב תשבתו שבתכם — *when*: from the ninth in the evening, evening to evening (this is the whole basis of **tosefet** — see Halachah 6).

3. Pinchas (Bamidbar 29)

Again the tenth of the seventh month — **ועניתם את נפשתיכם** (a **fifth** time) — **וכל מלאכה לא תעשו**.

The grand tally: five times the Torah says positively "afflict your souls." Remember this — it is the key to Halachah 5.

Halachah 1 — The Positive and Negative of Melachah

Note the order: **the Rambam begins with work, not affliction**, because work is the more familiar category — as on Shabbat and yom tov.

מצות עשה לשבות ממלאכה בעשור לחדש השביעי, שנאמר: שבת שבתון היא לכם.

A positive mitzvah to rest from all melachah on the tenth of the seventh month.

וכל העושה בו מלאכה ביטל מצות עשה ועבר על לא תעשה, שנאמר: ובעשור לחדש השביעי הזה... כל מלאכה לא תעשו.

One who works has **lost the positive mitzvah** *and* **violated a negative**.

ומה הוא חייב על עשיית מלאכה ביום זה? אם עשה ברצונו בזדון — חייב כרת. עשה בשגגה — חייב קרבן חטאת קבועה.

Willingly and intentionally: **karet**. Inadvertently (he did not know it was Yom Kippur, or knew but did not know this was forbidden): in Temple times, a **fixed** sin offering — as opposed to the sliding-scale offering.

Two comments

1. Why does the Rambam quote Pinchas? When citing the negative he goes all the way to **Bamidbar**, even though **Vayikra says it explicitly too** — וכל מלאכה לא תעשו בעצם היום הזה. And in **Sefer HaMitzvot he quotes Vayikra**. It is peculiar that at the opening of the section he reached for the later verse in Parashat Pinchas. The Rabbi could not find anyone who discusses this and has no settled answer — possibly there is an explanation; incidental, but worth noting.

2. Driving on Shabbat is more severe than driving on Yom Kippur. It always strikes the Rabbi as peculiar how many people who consider themselves traditionally *shomer Shabbat* **drive on Shabbat but will not drive on Yom Kippur** — "on Yom Kippur we walk." **The reality is the reverse in severity.** Someone driving a regular (non-electric) car has almost certainly violated **מבעיר**, combustion, one of the 39 melachot — an *issur d'oraita*; done willingly and consciously, he is **חייב סקילה**, which carries karet with it and is more severe still. **Yom Kippur carries karet, not the death penalty.** So it is lovely that people do not drive to

synagogue on Yom Kippur — but if you are going to break Yom Kippur, why break Shabbat? **There is an answer, and it comes in the next halachah.**

Halachah 2 — Everything Is the Same as Shabbat

כל מלאכה שחייבין על זדונה בשבת סקילה — חייבין על זדונה בעשור כרת.

וכל שחייבין עליה קרבן חטאת בשבת — חייבין עליה קרבן חטאת ביום הכפורים.

וכל דבר שאסור לעשותו בשבת אף על פי שאינו מלאכה — אסור לעשותו ביום הכפורים. For example the) **techum**: rabbinically 2,000 amot, biblically 24,000 — walking the forbidden biblical amount on Shabbat is an *issur d'oraita* though not sekilah. Anything forbidden on Shabbat even though it is not one of the 39 melachot is equally forbidden on Yom Kippur.)

ואם עשה — מכין אותו מכת מרדות, כשם שמכין אותו על השבת.

וכל שאסור לטלטלו בשבת — אסור לטלטלו ביום הכפורים. Muktzeh on Shabbat is muktzeh on Yom Kippur.)

וכל שאסור לאומרו או לעשותו לכתחלה בשבת — אסור ביום הכפורים. Everything forbidden **to say** on Shabbat: speaking to a non-Jew, discussing business, walking towards something forbidden, running — all of **ממצוא חפצך ודבר דבר**.)

כללו של דבר: אין בין שבת ליום הכפורים בעניינים אלו, אלא שזדון מלאכת שבת בסקילה וזדון יום הכפורים בכרת.

The only difference is the punishment: Shabbat, sekilah; Yom Kippur, karet. (One tiny exception in what you may *do* follows in Halachah 3 — and it does not apply nowadays.)

The Or Sameach — look carefully at the wording

Count the comparisons: **six times** the Rambam sets Shabbat against Yom Kippur — כל מלאכה / וכל שחייבין / וכל דבר / וכל שאסור / וכל שאסור / כללו של דבר /.

Now notice: **in comparisons two through six he calls the day "Yom HaKippurim."** But in the **first** — the one about the punishment for willful violation — he writes **חייבין על זדונה בעשור כרת**: *on the tenth*. Why switch? Either call it "the tenth" throughout or "Yom Kippur" throughout. **It is an apparent and basic question.**

The Or Sameach — Rabbi Meir Simcha HaKohen of Dvinsk, about a hundred years ago — points to something beautiful:

If you violate Yom Kippur **willingly, intentionally, בזדון — it is no longer called Yom Kippur for you. It is "the tenth."**

If I broke it by mistake, or transgressed something rabbinic, or muktzeh, or spoke improperly — **it is still Yom Kippur for me**: it is still the day of atonement, and I still receive atonement for the whole past year, as in Hilchot Teshuvah. But if I **consciously and willingly** break Yom Kippur, it is not Yom Kippur for me at all — it is merely **עשור**, the tenth day of the seventh month.

And with this we can answer the question from Halachah 1. There is perhaps some justification for that widespread (and still wrong) practice: yes, breaking Shabbat is more severe in **punishment** — sekilah rather than karet — but if I intentionally violate **Yom Kippur**,

then the entire day goes out of the window; it is no longer Yom Kippur for me, and what would be the point of the whole synagogue? Better, of course, to do no melachah on either. But that is a beautiful explanation of the instinct.

Halachah 3 — The One Leniency (Which We Do Not Practise)

Straight from the Talmud — the only place Yom Kippur differs from Shabbat in what you may do. It does not apply nowadays, but here it is.

מותר לקנב את הירק ביום הכפורים מן המנחה ולמעלה.

From Minchah time onward one may do *kinuv* to vegetables. **What is *kinuv*? — שיסיר את עליהן המעופשות ויקצץ השאר, כדי שיהיה מתוקן לאכול לערב**: remove the withered leaves of a lettuce or cabbage head and cut up the rest, so it is ready to eat in the evening.

וכן מפצעין באגוזין ומפרכין ברימונים מן המנחה ולמעלה, מפני עגמת נפש.

Likewise cracking nuts and opening pomegranates — **מפני עגמת נפש**, so a person should not be distressed.

> If Yom **יום הכפורים שחל להיות בשבת — אסור בקניבת ירק ובפציעת אגוזים ובפריכת רימונים כל היום.** Kippur falls on Shabbat it is ordinary Shabbat and **none of these leniencies apply**. (This year Yom Kippur falls on a weekday, so they would apply *mi-dina*.)

וכבר נהגו העם בשנער ובמערב שלא יעשו אחד מכל אלו ביום הצום, אלא הרי הוא כשבת לכל דבריו.

The custom in Babylonia and in the west is not to do any of these, and to treat Yom Kippur exactly like Shabbat in every respect — as we learned in Halachot 1 and 2.

The Gemara itself already records that this became the custom, so although the leniency is the strict law, the Rambam rules this way, the Shulchan Aruch rules this way, and **nobody does this today**.

What was it, and why was it permitted?

> if you could not prepare, you would spend the day distressed and preoccupied: — **עגמת נפש** .*what am I going to eat tonight?* So you may start preparing salads and fruit for afterwards

But how is removing the withered leaves not *borer*? The Chachamim cannot permit a *d'oraita* just so a person can prepare his post-fast meal. Note first that other Rishonim read *kinuv* differently — **Tosafot** take it to mean only **washing** the vegetables, not removing anything, precisely because of the borer concern. **The Rambam** understands it as removing the bad leaves. So how is it not borer? There is a large discussion in the Acharonim:

Answer	Reasoning
Maggid Mishneh	It is not **פסולת גמור** — the withered leaves are not genuinely waste; they are still edible. Recall the principle from our learning of borer.
Others	It is all **מין אחד** — one single species.
Rav Kappach (and others) — **the best of the three, in the Rabbi's view**	**It is clearly identifiable.** As we learned a few months ago, borer applies only to a genuine **mixture** — peanuts, pistachios and cashews mixed together and not ascertainable without moving things. Here you have a lettuce head with the withered leaves **on the outside** and the good ones in the middle: **that is not a mixture at all**.

And the nuts? Here the issue is **דש**, threshing — extracting the nut from its shell. Cracking to eat immediately is one thing; cracking to leave for later is another. So the poskim point out it must be that **you crush them without actually extracting them** — they crack and mix together, and you pick them out and eat them straight after the fast.

Halachah 4 — The Positive and Negative of Affliction

That completes the melachah half of the introduction's four mitzvot. The remaining mitzvah — the positive and negative of **affliction** — runs from here to the end of the chapter and through Chapters 2 and 3.

מצות עשה אחרת יש ביום הכפורים, והוא לשבות בו מאכילה ושתיה, שנאמר: תענו את נפשתיכם.

Notice what he does *not* say: not washing, not shoes, not relations, not anointing. **Only eating and drinking.**

מפי השמועה למדו: איזהו עינוי שהוא לנפש? זה הצום. וכל הצם בו קיים מצות עשה.

From the oral tradition: the affliction *of the soul* is **fasting**. One who fasts fulfils the positive mitzvah.

Why does "afflict your soul" mean not eating and drinking? The Rambam already wrote in his **commentary to the Mishnah**: **דבר שהנפש תלויה בו — זו אכילה ושתיה** — the thing upon which life itself depends is eating and drinking.

The Gemara's alternative (Yoma): perhaps **תענו את נפשתיכם** means you should **sit in the sun** until you are boiling hot and sunburnt? The Gemara rejects it: affliction *of the nefesh* means something the soul is **dependent upon** — without which you cannot live.

וכל האוכל ושותה בו ביטל מצות עשה ועבר על לא תעשה, שנאמר: כי כל הנפש אשר לא תענה בעצם היום הזה ונכרתה מעמיה.

מאחר שהעניש הכתוב כרת למי שלא נתענה, למדנו שמוזהרין בו על אכילה ושתיה.

Since the Torah imposes karet on one who is not afflicted, we learn that eating and drinking are **prohibited**.

וכל האוכל או שותה בו בשוגג — חייב בקרבן חטאת קבועה.

So: eating or drinking loses a positive mitzvah and violates a negative carrying **karet**; inadvertently, a fixed sin offering.

Halachah 5 — The Other Four Innuyim: Biblical or Rabbinic?

A major discussion. Read it carefully.

וכן למדנו מפי השמועה שאסור לרחוץ בו, או לסוך, או לנעול את הסנדל, או לבעול.

From the oral tradition: washing, anointing, wearing (leather) shoes, and marital relations are forbidden.

ומצוה לשבות מכל אלו כשם שהוא שובת מאכילה ושתיה, שנאמר: שבת שבתון — שבת מן האכילה, שבתון מן אלו.

A double rest: *shabbat* from eating and drinking, *shabbaton* from these.

ואין חייבין כרת או קרבן אלא על אכילה ושתיה.

Karet (intentionally) and a sin offering (inadvertently) apply **only to eating and drinking** — everyone agrees, because the Torah wrote **תענו** in connection with eating.

אבל אם רחץ או סך או נעל או בעל — מכין אותו מכת מרדות.

The tension

implies something **biblical** (not of the same severity as eating and drinking, but **מפי השמועה always means rabbinic lashes**. So what has **מכת מרדות** biblical) — and he **quotes a verse**. Yet a person done if he showered, or applied creams, or engaged in relations, or wore leather ?shoes on Yom Kippur

Why these five things at all?

This is why we went through the verses at the start of the shiur. **Five times** the Torah says positively *afflict your souls*: **ועניתם** and **תענו** (twice in Acharei Mot), twice in Emor, once in Pinchas. The Chachamim played on the fivefold repetition of the one mitzvah: there must be **something more to add on** — hence washing, anointing, shoes and relations alongside eating and drinking.

The positions

Authority	Holds
Rosh, Tur and many other Rishonim	All four are **rabbinic**; the verses cited in the Gemara (שבת שבתון, and the repetitions of תענו) are the peg. Hence rabbinic lashes, and **no biblical prohibition** in showering on Yom Kippur.
Rabbeinu Nissim on the Rambam	Understands the Rambam to hold **d'oraita**.
Radbaz and others	A whole machloket as to what the Rambam holds.
The Rabbi's own reading	**Rabbinic**, to be consistent with his other writings (below).

Two strong indications that the Rambam holds rabbinic:

1. **His commentary to the Mishnah (Yoma)** — written in his twenties — says it outright: **הם רמזים ואסמכתות, ועיקר שאינם מקבלה, ולכן אינו חייב עליהם כרת אבל מכת מרדות.** He calls them an **asmachta**, which is clearly rabbinic. At least when he wrote that, he definitely held the other four are rabbinic.
2. **Sefer HaMitzvot, mitzvah 196** — the prohibition against not afflicting oneself on Yom Kippur — discusses **only eating and drinking**, with not a word about the other four. Since Sefer HaMitzvot deals only with biblical mitzvot, the implication is clear.

What remains difficult is **מפי השמועה**. One could say he is merely quoting the Gemara's verses as an asmachta, not real proof-texts — but the phrase itself is hard, and that is why the tension in the Rambam persists.

Robert asked: if it is rabbinic, how do we deal with the fact that he invokes an **oral tradition**, which would suggest *halachah l'Moshe mi-Sinai*? — **The Rabbi:** exactly right, those are the problematic words. **And if you hold it is d'oraita, what will you do with מכת מרדות?** Both questions are valid; you are left in a quandary either way. You could say **מפי השמועה** means *rabbinic* traditions — but that is very strange, because when the Rambam uses מפי השמועה he almost always means the Chachamim **interpreting a biblical verse**. Hence the tension.

What is clear regardless: eating and drinking are **d'oraita with karet**; for the other four there is **no karet and no sin offering for shogeg** — whether one has violated a negative biblical prohibition or a rabbinic enactment is open to dispute.

Halachah 6 — Night and Day, and Tosefet

כשם ששבות ממלאכה בו בין ביום ובין בלילה, כך שבות לעינוי בין ביום ובין בלילה.

Just as melachah is forbidden both day **and night** — the word *yom* notwithstanding — so too the afflictions apply at night. You cannot go home at night and eat, drink or do the other innuyim. Straightforward; the Gemara learns it clearly.

וצריך להוסיף מחול על הקודש בכניסתו וביציאתו, שנאמר: ועניתם את נפשתיכם בתשעה לחדש בערב.

The source

The verse in **Emor** reads: **שבת שבתון הוא לכם ועניתם את נפשתיכם בתשעה לחדש בערב, מערב עד ערב תשבתו שבתכם.** The Gemara asks: Yom Kippur is on the **tenth** — the Torah has said so repeatedly! So **"the ninth in the evening"** must mean **late afternoon of the ninth, just before the tenth: you must add on**. And **מערב עד ערב** — you must add on at the **end** as well. **This verse and this Gemara are the entire source of the concept of adding on** before and after.

But notice exactly what the Rambam writes

כלומר: התחל לצום ולהתענות מערב תשעה סמוך לעשירי. וכן ביציאתו — שוהה בעינויו מעט מליל אחד עשר סמוך לעשירי, שנאמר: מערב עד ערב תשבתו שבתכם.

Begin to fast from the evening of the ninth; and at the end, **remain in your affliction** a little into the night of the eleventh. **The adding on and the extending are only with regard to fasting.** Why? **Because he reads the verse that way:** "the ninth in the evening" attaches to

the **last phrase — ועניתם את נפשתיכם**, afflict yourselves, i.e. eating and drinking — not to **שבת שבתון**, the resting from work.

The yesod — according to the Rambam there is no *tosefet Shabbat*

There is a halachah in Shulchan Aruch called **תוספת שבת** — there is even a **sefer** called *Tosefet Shabbat*, by a great commentator on Hilchot Shabbat. **According to the Rambam there is absolutely no such concept**, not on Yom Kippur and not on any Shabbat or yom tov of the year. The only thing the Gemara derived is adding on to **Yom Kippur, for eating and drinking**.

Work it through practically. Say the addition is two minutes. Sunset this Sunday night is roughly **7:03–7:04** (the fast in our calendars comes in at **6:49**). Then:

- From the Torah, a positive mitzvah, I must **stop eating by about 7:02**.
- But **I may do melachah at 7:03** — I could light a match and light the candles.
- And on **every Shabbat of the year**, I may not work from sunset, but **a minute before sunset I may**, if I know exactly when sunset is — because there is no *tosefet Shabbat*.

Other Rishonim held otherwise: when the Gemara derives the addition from **שבת שבתון הוא לכם ועניתם... בתשעה לחדש בערב**, "the ninth" goes on **both** — on the affliction *and* on the resting; and because it says **שבת שבתון**, a double Shabbat, it applies to **every Yom Kippur and every Shabbat**. That is how the Rishonim rule and **how the Shulchan Aruch rules** — there is a whole discussion there about *tosefet*, adding on to Shabbat. So the Shulchan Aruch does **not** rule like the Rambam:

צריך להוסיף מחול על הקודש, ותוספת זו אין לה שיעור — and likewise in Hilchot Shabbat.

How long is the addition?

There is no shiur — the Shulchan Aruch says so explicitly. The poskim give a **minimum of 2 minutes**; the practice ranges from 2 to 15 minutes, and in Israel (Jerusalem) even 40 minutes, for a different reason. **Our calendars in London use 15 minutes** — hence the fast coming in at 6:49 with sunset around 7:04. Everything we do nowadays — bringing Shabbat in early, taking it out late — takes the strictest calculations of nightfall (there are many ways to calculate it) and **adds minutes on top**, every single Motzaei Shabbat, because of *tosefet Shabbat*. **According to the Rambam, no such concept exists.**

A participant asked: surely the addition would apply **rabbinically** to the other afflictions too — shoes, washing — since the word appears five times? — **The Rabbi:** on a **rabbinic** level, of course it would; you should rest the extra minutes from shoes and everything else as well. The Rambam's point, and the contrast being drawn here, is with **melachah**, which on the other view applies everywhere, all year round.

Halachah 7 — The Women Who Ate Until Dark

נשים שאוכלות ושותות עד שחשכה, והן אינן יודעות שתוספת מחול על הקודש מצות עשה — אין מחין בידן, שלא יבואו לעשות בזדון.

שהרי אי אפשר שיהא שוטר בבית כל אחד ואחד להזהיר נשיו.

והנח להן שיהו שוגגין ולא יהיו מזידין. וכן כל כיוצא בזה.

Women who eat and drink **until dark**, not knowing that adding on from the mundane to the holy is a positive mitzvah — **we do not object to them**, lest they come to do it intentionally. Because you cannot post a **policeman in every single house** to warn a man's wives. (Remember the setting: a man with several wives, not all living in one house; you are keeping the fast in one house, and there are wives in others. There is no WhatsApp, no fixed printed calendar times — they look at the sky and continue eating.) **Leave them: better they act inadvertently than deliberately.** And so with anything similar.

Problem one — the Gemara in Beitzah

The Gemara in Beitzah states very clearly that the principle *better they transgress inadvertently than deliberately* **does not apply to biblical matters**. But this *is* biblical — we just derived the mitzvah of adding on from a verse!

The Maggid Mishneh explains: yes, it is biblical — but when the Gemara says "biblical" it means **explicitly written in the Torah**. *Do not eat on Yom Kippur* is explicit, so you must tell them, even if they will not listen. **Here it is a din derived** — from the Torah, but not explicit — and in such a case we say better they violate it unintentionally than intentionally.

The Rema (Orach Chaim 608) writes exactly this:

> **ודוקא שאינו מפורש בתורה, אבל אם מפורש בתורה — מוחין בידם**, even though it is d'oraita either way.

Problem two — the bigger issue: what does עד שתחשך mean?

The plain reading is **until nightfall**. Which means **these women are eating and drinking right through sunset!** Take Sunday night: sunset around 7:04, so with a two-minute minimum they should stop at 7:02. If they carry on for, say, 13 minutes past sunset — **they are in a ספק דאורייתא**: if after sunset is already nightfall, then it is already Yom Kippur and they are **eating on Yom Kippur**. Missing the mitzvah of *tosefet* is one thing; this is quite another. What is going on?

- **The Mishnah Berurah** answers that **עד שתחשך** here means **until sunset**, not nightfall.
- **The Rambam clearly held it means until nightfall.** Why could he? **Because the Rambam holds that ספק דאורייתא לחומרא is only a din derabbanan.**

The Rambam's position on safek d'oraita

This is a **major machloket Rishonim** — it originates, bizarrely enough, in the whole discussion of **mamzer**. Is the rule that a doubt in a biblical prohibition must be treated strictly **a Torah requirement**, or a **rabbinic** one? **The Rambam held — unlike others — that it is only *miderabbanan*.** From the Torah itself, a doubt about a biblical prohibition **may be treated leniently**.

And therefore: when those women eat and drink after sunset but before nightfall, **I do not have to object**. They are missing the mitzvah of adding on, granted; and potentially it is already night, potentially already Yom Kippur — but *bein hashmashot* is **ספק יום ספק לילה**, a genuine doubt, and a doubt in a biblical matter may biblically be treated leniently; only rabbinically must we be strict. **Fascinating.**

Summary

The Rambam titles this section **הלכות שביתת עשור** — not *Hilchot Yom Kippur* — because the **kaparah** of the day belongs to Hilchot Teshuvah; here he treats the **four mitzvot** of resting and afflicting. Working on Yom Kippur forfeits a positive mitzvah and violates a negative carrying **karet** (a fixed chatat for shogeg), and in every other respect — biblical non-melachot, rabbinic prohibitions, muktzeh, forbidden speech — **Yom Kippur is identical to Shabbat**, the sole difference being sekilah versus karet. The **Or Sameach** explains the Rambam's switch to "the tenth" in that very clause: violate the day **deliberately** and it is no longer *Yom Kippur* for you at all — which is perhaps why people instinctively guard Yom Kippur even while (wrongly) treating Shabbat lightly, though driving on Shabbat is the graver offence. The one halachic leniency — *kinuv yerek*, cracking nuts and pomegranates from Minchah onwards **מפני עגמת נפש** — was already abandoned by custom, and its permissibility turns on why removing withered leaves is not **borer** (Rav Kappach: it is not a mixture at all, being clearly identifiable). The **affliction** is defined by the oral tradition as **fasting** — **דבר שהנפש תלויה בו** — carrying karet; the **other four innuyim** carry only **makkat mardut**, and whether the Rambam holds them biblical or rabbinic is a live tension (his commentary to the Mishnah and Sefer HaMitzvot 196 point firmly to rabbinic, against the words **מפי השמועה**). The afflictions apply **night and day**, and **tosefet** is derived from *בתשעה לחדש בערב* — which the Rambam attaches **only to the affliction**, yielding the striking yesod that **according to him there is no such thing as tosefet Shabbat**, against the Shulchan Aruch. And finally, the women eating **until dark** are not to be rebuked — better shogeg than meizid for a derived (not explicit) biblical law, and, for the Rambam, because **ספק דאורייתא לחומרא is itself only rabbinic**.

Coming Up

- **Chapters 2 and 3 were not reached — learn them over Yom Kippur**, *inyana d'yoma*:
- **Chapter 2** — how much eating and drinking one is liable for, and the laws of the **ill**.
- **Chapter 3** — the other restrictions: **washing, anointing, shoes and relations**, and one who has an emission on Yom Kippur night going to the mikveh (a fascinating discussion nowadays).
- **Next week:** a chapter on **Sukkot** from the Rambam — to be confirmed on the group whether the Thursday shiur runs.
- Then back to **Hilchot Shabbat**, siman 320 onwards.

B'Ezrat Hashem — גמר חתימה טובה

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